ing of the Fifth Amendment has changed. See 8 U. S. C. § 1427(a) (present naturalization statute).

If equal protection principles applied to immigration decisions, much of even our current immigration law would conflict with this Court's modern equal protection doctrine. This Court has interpreted the Equal Protection Clause to bar discrimination based on "country of origin." *Oyama* v. *California*, 332 U. S. 633, 640 (1948). But, our immigration laws have distinguished among aliens based on their national origin from the beginning. See, *e. g.*, Act of July 6, 1798, § 1, 1 Stat. 577 (authorizing deportation of those who are subjects of hostile nations). Today, applicants for immigration are treated differently based on their nationality as a matter of course. 8 U. S. C. § 1152(a)(2). And, respondents themselves seek a protection from deportation for people from Haiti, but not the neighboring Dominican Republic. If they are correct that the Court should apply equal protection precedents to immigration decisions, then the program that they benefit from may, ironically, be unconstitutional.

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JUSTICE KAGAN, with whom JUSTICE SOTOMAYOR and JUSTICE JACKSON join, dissenting.

For over a decade, the Government has provided humanitarian relief to Haitian and Syrian nationals in the United States through the Temporary Protected Status (TPS) program. The Secretary of Homeland Security first designated Haiti for the program in 2010 after an earthquake devastated the country; the Secretary designated Syria in 2012 because of the government and military's brutal repression of the country's civilian population. Since those initial designations, Secretaries have repeatedly examined the conditions in the two countries, and have repeatedly determined that they remain too dangerous to permit safe return. As a result, those countries' TPS designations have been extended

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(explaining that persons of Japanese descent were still ineligible in 1948); Immigration and Nationality Act of 1952, § 311, 66 Stat. 239.

year after year, and hundreds of thousands of Haitians and Syrians have been able to live and work here.

But that is no longer so, and the suits before us challenge that change. Last year, then-Secretary Kristi Noem, at the instigation of President Trump, terminated Haiti's and Syria's TPS designations, declaring the countries now safe. Haitian and Syrian TPS holders brought these cases, and sought interim relief allowing them to stay here while the litigation progressed. The District Courts granted that relief, finding (among other things) that the terminations were likely unlawful. Both courts concluded that the Secretary probably violated the TPS statute by ordering the terminations without first consulting with other agencies about current country conditions. And the District Court in the Haiti litigation found as well that the plaintiffs had a likely successful equal protection claim, in part because statements made by the President showed that a racially discriminatory purpose had entered into the TPS termination.

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Today the Court undoes that preliminary relief—insisting that the terminations take effect now—based on two mistakes about the plaintiffs' likelihood of success. First, the majority asserts that the Secretary's compliance with the TPS statute is in every respect unreviewable by the courts. But in fact the statute allows judicial review of whether the Secretary adhered to the procedures it mandates—which is what the plaintiffs dispute here. Second, the majority claims to see *no* evidence that race played *any* role in the Haiti decision. But the evidence is there, plain to see, in the President's statements, which the majority (and for that matter, his own lawyers) cannot even bear to repeat. Once that much is established, the case for interim relief is made: There is no dispute that the plaintiffs will suffer irreparable harm absent postponement of the TPS decisions. So the plaintiffs are entitled to stay in this country while these suits go forward. Respectfully, I dissent from the Court's decision that they may instead be put on the next plane.

I

Start with how the TPS program works—or, at least, is supposed to. The governing statute authorizes the Secretary to "designate" a country for the program if it is suffering from specified dangerous or harmful conditions, such as may arise from armed conflicts or natural disasters. 8 U. S. C. § 1254a(b)(1). When the Secretary makes a designation, she also announces how long it will last—anywhere from six to eighteen months. At the end of that period, the designation does not just go away; nor is its fate left to the Secretary's unfettered discretion. Rather, the statute mandates a "[p]eriodic review" process: "At least 60 days before [the] end" of the chosen period, the Secretary, "after consultation with appropriate agencies of the Government, shall review the conditions in the foreign state" and "shall determine whether the conditions for such designation under this subsection continue to be met." § 1254a(b)(3)(A). If the Secretary determines the statutory criteria are no longer met, she "shall" terminate the designation; otherwise, the designation "is extended." §§ 1254a(b)(3)(B), (C). Either way, "[t]he [Secretary] shall provide on a timely basis for the publication of notice" in the Federal Register. § 1254a(b)(3)(A). So in all, the statute tells the Secretary to complete four steps to terminate a TPS designation: (1) consult with appropriate agencies about the country's conditions, (2) review those conditions, (3) determine whether those conditions are still bad enough to meet the statutory criteria, and (4) publish a notice in the Federal Register. All agree those steps are mandatory. See *ante*, at 332.

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The first question in these cases is whether a federal court can review a claim that the Secretary failed to take one of the four mandated steps—here, that before terminating TPS for Haiti and Syria, she failed to consult with appropriate agencies about country conditions. The plaintiffs' failure-to-consult claims are brought under the Administrative Procedure Act, which means judicial review is available unless "a

relevant statute precludes it" or the challenged "action is committed to agency discretion by law." *Department of Commerce* v. *New York*, 588 U. S. 752, 771 (2019); see 5 U. S. C. § 701(a). Neither the Government nor the majority contends that the actions in dispute are committed to the agency's discretion, so the issue here is whether the TPS statute prevents courts from reviewing the Secretary's compliance with its mandatory procedures.

The statute does no such thing. Its judicial-review bar applies not to everything the Secretary does under the law, but only to her "determination" "with respect to the designation, or termination or extension of a designation, of a foreign state." 8 U. S. C. § 1254a(b)(5)(A). To preclude review of those determinations is of course to insulate critical matters from judicial scrutiny. Suppose the Secretary determines that a country no longer qualifies for a TPS designation even though the record shows the opposite—that country conditions are as dire as ever. Under the statute, no court may second-guess that determination. But still, the review bar has limits. It does nothing to stop courts from reviewing things *other* than the Secretary's "determination[s]" concerning TPS designations. *Ibid.* And those other things include the procedural steps the Secretary must undertake prior to making any determination about country conditions.

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For that reason, the judicial-review bar does not preclude the plaintiffs' failure-to-consult claims. Those claims are narrow. They do not assert that the Secretary made the wrong call when she determined that Haiti and Syria no longer meet the criteria for TPS (although the plaintiffs surely think that too). Instead, the claims are that the Secretary failed to comply with a pre-determination procedural mandate—more specifically, that she failed to consult with appropriate agencies about country conditions. A court can adjudicate those claims without reviewing—or even thinking about—the Secretary's later "determination[s]" concerning

(*i. e.*, "with respect to") the "termination" of Haiti's and Syria's TPS "designation[s]." *Ibid.* That is because the claims concern a distinct matter—whether the Secretary did what the statute demands before she made her unreviewable decision.

The majority's contrary conclusion rests on what it self-describes as a "very broad" view of the term "determination." *Ante*, at 339. According to the majority, that term can "be used as a synonym for 'decision' " *or* "to describe the chain of events leading up to a decision." *Ibid.* So when the judicial-review bar refers to a "determination," the majority posits, it means not only the actual determination of whether a country still qualifies for TPS, but also the "chain of events leading up to" that decision. *Ibid.* And the latter includes, the majority says, the statutorily required consultations—which (*voila*!) brings them within the judicial-review bar.

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"[V]ery broad" might be one description for that reading of the term "determination"; very strange is another. Just last Term, this Court observed that the word "determination" is a "term[ ] of everyday usage," and then said what it means: the "settling and ending of a controversy"; "the resolving of a question by argument or reasoning"; "[t]he decision arrived at or promulgated"; or "a determinate sentence, conclusion, or opinion." *EPA* v. *Calumet Shreveport Refining, L.L.C.*, 605 U. S. 627, 643 (2025). Missing from those definitions (or any other you, as an English speaker, would naturally come up with) is any suggestion that events preceding a determination—including required procedural steps—are properly referred to as the "determination" itself. See *McNary* v. *Haitian Refugee Center, Inc.*, 498 U. S. 479, 492 (1991) (construing the word "determination" in another judicial-review bar as "describ[ing] a single act," rather than the "procedure employed in making decisions"). In ordinary English, a "determination" means, well, a determination—not a determination plus anything and everything the

decisionmaker does or is required to do beforehand. And then, so too in this statute—which even the majority does not think uses the word "determination" as some special term of art. See *ante*, at 343.[1]

And even if the matter is less certain than I think, the "strong presumption" in favor of judicial review should decide it the plaintiffs' way. *Mach Mining, LLC* v. *EEOC*, 575 U. S. 480, 486 (2015). That presumption applies even when we interpret the scope, rather than the existence, of a judicial-review bar. See *Cuozzo Speed Technologies, LLC* v. *Lee*, 579 U. S. 261, 273 (2016). In that context, as in all others, we "presume that Congress intends the executive to obey its statutory commands and, accordingly, that it expects the courts to grant relief when an executive agency violates such a command." *Bowen* v. *Michigan Academy of Family Physicians*, 476 U. S. 667, 681 (1986). The majority concedes as much, mouthing all the right words: "[W]hen a statutory provision is reasonably susceptible to divergent interpretation, we adopt the reading that accords with the traditional and basic principle that executive determinations generally are subject to judicial review." *Ante*, at 340 (quoting *Guerrero-Lasprilla* v. *Barr*, 589 U. S. 221, 229 (2020)). And then the principle gets ignored. If the meaning of "determination" is *not* "reasonably susceptible to divergent interpretations," it is only because, as I maintain, a "determi-

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[1] The majority briefly states that it would reach the same conclusion if "determination" means only the "final decision" to terminate TPS because (it says) all the prior consultative steps—which, somewhat confusingly, it also labels "decisions"—would be "with respect to" that ultimate TPS determination. *Ante*, at 339–340. The problem with that argument is that it jumbles the order of the words in the statute. The statute does not speak of decisions (or steps) "with respect to" a determination—whatever that would mean. Instead, the statute speaks of a determination "with respect to" "the designation, or termination or extension of a designation, of a foreign state." 8 U. S. C. § 1254a(b)(5)(A). So if a "determination" is indeed only the Secretary's "final decision," as the majority here accepts, then the phrase "with respect to," however broad, does it no good.

nation" is a determination. But the majority's view that a "determination" includes as well all the steps and processes and actions in "the chain" leading up to the determination? *Ante*, at 339. That is reasonably contestable by any measure.

Indeed, the consequences of today's holding could be Exhibit A in the case for why we have adopted a presumption favoring judicial review. The TPS statute makes plain that Congress insulated the Secretary's designation determinations from review—that it did not want judges overriding secretarial decisions (made with proper consultation) about conditions in foreign countries. But the majority's holding makes *everything* in the statute precatory, including procedural requisites whose enforcement would seem to fall smack in the middle of the judicial wheelhouse. After today, a Secretary can announce to the world that she didn't consult with anyone—more, that she didn't evaluate country conditions at all—before making, extending, or terminating a TPS designation. And the courts will be powerless to intervene, even though Congress loaded up the TPS statute with requirements about the (altogether different) way the Secretary is supposed to make her decision. If it means anything to "presume that Congress intends the executive to obey its statutory commands," *Bowen*, 476 U. S., at 681—to think that Congress does not want all its work to go for naught—then the majority has gone wrong.

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And the claims that the majority refuses to review are in fact meritorious, because the Secretary did not consult (as the statute demands) with "appropriate agencies of the Government" about "the conditions" in Haiti and Syria. § 1254a(b)(3)(A). As everyone agrees, the only relevant communications here were brief email exchanges between an aide to the Secretary and an official at the State Department (a clearly "appropriate" agency). The aide stated (in two separate emails) that Haiti's and Syria's TPS designations were up for review; the official then replied as to each that the State Department had "no foreign policy concerns" with

a termination of TPS. 2 App. 763; Administrative Record in No. 25–cv–8686 (SDNY), ECF Doc. 72–2, p. 156. The problem with those exchanges is that they were not about the right thing. The statute insists on consultations about whether country conditions are safe, not about whether ending TPS raises "foreign policy concerns." While there might be overlap between the two subjects, they are hardly coextensive. It could well be that terminating TPS for even an unsafe country raises no foreign policy concerns because it does not threaten U. S. relations with any significant foreign nation. Of course, the State Department is free to opine on that matter, as part of its job of overseeing foreign affairs. But the TPS statute mandates that it also advise on something else: whether, since an earlier TPS designation, the conditions in a country (here, Haiti and Syria) have become safe. The State Department did not do that here, so the Secretary did not fulfill her consultation requirement.[2]

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The Government's opposing argument—that the required consultation occurs whenever the Secretary *asks* about country conditions—is underwhelming. According to the Government, "consultation" just means "[t]o seek advice or input," not to receive it. Tr. of Oral Arg. 41; see *id.*, at 38 ("[I]f you've asked, you've consulted"). So once the Secretary reaches out to an appropriate agency, the statute is satisfied, even if a response never comes back, or if the one that does is "completely unresponsive" like "wasn't that baseball

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[2] One might wonder why a State Department official asked about TPS would weigh in on "foreign policy concerns" when the statute insists on consultations about country conditions. Perhaps it was just a miscommunication or mistake. But perhaps it was purposeful avoidance of an inconvenient topic. At the relevant time, the Department's travel advisories stated that Haiti was unsafe due to "kidnapping, crime, terrorist activity, civil unrest, and limited healthcare," and that "[n]o part of Syria [was] safe from violence" due to "terrorism, civil unrest, kidnapping, hostage taking, and armed conflict." 2 App. 771; 1 *id.*, at 447. So it would have been hard for a State Department official to provide the Secretary with the relevant country-condition assurances.

game tonight great?" *Id.*, at 38–39. But sorry, that is not what "consultation" means. See, *e. g.*, Black's Law Dictionary 316 (6th ed. 1990) (defining "[c]onsultation" as "[d]eliberation of persons on some subject"). If your doctor tells you, "After consulting with a specialist, I've determined that you should have this procedure," you would think he had an exchange with an expert about your condition. If it turned out the doctor emailed a specialist but never heard back, or the specialist's reply was about a baseball game, you would think the doctor had lied. The emails here are in the same vein. The consultation required by law never took place because there was no two-way communication about the right subject.

II

The Haiti plaintiffs have yet another claim that is likely to succeed: that race entered into the decision to terminate Haiti's TPS designation, in violation of equal protection.

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Our decision in *Arlington Heights* v. *Metropolitan Housing Development Corp.*, 429 U. S. 252 (1977), supplies the standard for assessing that claim. The Haiti plaintiffs must show (here, must show as a likelihood) that a racially "discriminatory purpose" was "a motivating factor" in the termination of Haiti's TPS designation.[3] *Id.*, at 265–266. Critically, "a motivating factor" does not mean the sole factor, or even "the dominant or primary one." *Id.*, at 265. One factor among many is enough when the factor is racial to

[3] The majority assumes without deciding that *Arlington Heights* provides the right framework. See *ante*, at 347. But of course it does. *Arlington Heights* is the framework we have always used to examine discriminatory purpose in equal-protection cases—including six years ago in another lawsuit involving a challenge to immigration policy. See *Department of Homeland Security* v. *Regents of Univ. of Cal.*, 591 U. S. 1, 34 (2020) (plurality opinion). The Government's argument that we should apply the deferential test the Court used in *Trump* v. *Hawaii*, 585 U. S. 667 (2018), seeks both a significant extension of *Hawaii* and a massive change in equal-protection law—neither of which is warranted.

presumptively establish an equal protection violation. See *ibid.* And in determining whether such a factor exists, a court must undertake a "sensitive inquiry" into whatever "circumstantial and direct evidence of intent" is available. *Id.*, at 266. It should consider "[t]he historical background of the decision"; the "sequence of events leading up" to it; and, most relevant here, "contemporary statements" by decisionmakers. *Id.*, at 267–268.

This Court must also take account of a deferential standard of appellate review. The discriminatory-purpose inquiry is predominantly factual, so a lower court's conclusion must stand unless clearly erroneous. See *Anderson* v. *Bessemer City*, 470 U. S. 564, 573 (1985). Here, the District Court found that the existing record (which future discovery could supplement) "strongly suggests that [the] decision to terminate Haiti's TPS designation was motivated, at least in part, by racial animus." 2 App. 703; see *id.*, at 698 (observing that the President's statements "repeatedly invoked racist tropes of national purity," and evinced "anti-black" animus). Under clear-error review, that finding governs so long as it is "plausible." *Anderson*, 470 U. S., at 574.

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It is more than plausible: Even putting the clear-error standard aside, the Haiti plaintiffs have carried their burden. The evidence they have offered includes statements by the President so repellent and racially inflected that the majority declines to put them in print. (Indeed, one measure of the President's way of speaking about Haitians is to compare it with the majority's, which is unfailingly respectful.[4]) So here are some of those statements. Haitians are "eating the dogs . . . . They're eating the cats. They're eating—they're eating the pets of the people that live [in Springfield, Ohio]." 2 App. 802; see *id.*, at 644. And: Haitians are also eating

[4] For example: "[P]overty and deprivation are no reflection on character, and there is no justification for denigrating the character of Haitians who suffer from and bear no responsibility for their country's ills." *Ante*, at 348.

"other things too that they're not supposed to be." *Id.*, at 698–699. And: Haitians in the United States "probably have AIDS." *Id.*, at 698. And: Haiti is a "shithole country," which is "filthy, dirty, [and] disgusting." *Id.*, at 698–699. And: Haitian immigration is "like a death wish for our country." *Id.*, at 698. And: Haitians, along with some others, are "poisoning the blood" of our country. *Ibid.* And: "Why is it we only take people from shithole countries" like "Haiti [and] Somalia"? "Why cannot we have some people from Norway [and] Sweden?" *Id.*, at 699. The majority briefly replies that those remarks are not "overtly racial," *ante*, at 348, but it is hard to know what that means. Haitians are Black. (Norwegians and Swedes not so much.) The references—of filth, disease, and primitiveness—are shot through with racial stereotypes and tropes. It is hard to imagine the statements being made today of any White community. No very "sensitive inquiry," of the kind *Arlington Heights* compels, is needed to see them for what they are, 429 U. S., at 266; judges, as we often say, are "not required to exhibit a naiveté from which ordinary citizens are free," *Department of Commerce*, 588 U. S., at 785. The statements fairly shout, in their racial undertones and overtones alike, that race entered into the President's resolve to remove Haitians from this country.

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The majority's opposing argument is at odds with the *Arlington Heights* standard. On the majority's view, there is a more plausible "race-neutral explanation[ ]" of the termination of Haiti's TPS designation: "the present administration's general stance on immigration and its obvious antipathy toward past administrations' TPS policies." *Ante*, at 349; see *ante,* at 329. But the *Arlington Heights* test is not in the nature of an "either/or" inquiry. It does not ask a court to identify which is the single cause, or even the primary cause, of an official action. To the contrary, that test recognizes a "both/and" world: that causes are usually multiple (and often intertwined). I have no doubt that, as the majority says,

the current administration is generally hostile toward immigration and prior TPS policies. I also have no doubt, again with the majority, that those views may be held for reasons "hav[ing] nothing to do with race." *Ante*, at 348. But under *Arlington Heights*, that is not the end of the matter. If in addition to race-neutral reasons, race entered into the picture—even as a subsidiary factor—the Haiti TPS decision is irretrievably tainted. And here, the President's own statements show that race did enter in—that, within what was surely a multi-cause decision, it was *a* motivating factor. Because that is all the Haiti plaintiffs need to show on their equal protection claim, the District Court was right to find that it is likely to succeed.

III

Once the merits are thus established, the requested interim relief must follow, given the harm the plaintiffs will otherwise suffer. See *Nken* v. *Holder*, 556 U. S. 418, 426 (2009) (considering "whether the applicant will be irreparably injured"). Indeed, neither the Government, in its briefing here, nor the majority contests the point. Without a postponement of the TPS terminations, hundreds of thousands of Haitians and Syrians living in this country will lose their legal status and work authorization. Most will have no legal option except to leave the country, even at the price of leaving family behind; otherwise, they will likely be detained or removed. Some may be eligible to apply for asylum, but they will not be able to work here, so as a practical matter may also have to relocate. And where will any of those individuals go? Haiti and Syria are countries that the State Department continues to list as too dangerous for travel; they may be yet more perilous for a former inhabitant. Nor would there be much hope for an eventual return to this country, given statutory bars on reentry and TPS requirements of continuous presence. Hundreds of thou-

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sands of lives will be uprooted, most permanently, while this litigation to annul the Secretary's (likely illegal) termination orders proceeds.

Take as examples two of the individual plaintiffs here. Fritz Emmanuel Lesly Miot is a Haitian national who has held TPS for fifteen years. He lives in California where he works in a laboratory researching Alzheimer's, a job he can hold only because of his TPS work authorization. Miot suffers from Type 1 diabetes, which is easily treated in the United States. But in Haiti, the same disease can be a death sentence, given that country's collapsed health-care infrastructure (attributable to both natural disasters and political conditions). And beyond those health issues, Miot believes his long-term residency in the United States would make him a prime target in Haiti for a kidnapping. Or consider Laila Doe, who fled Syria with her daughter in 2013 after her neighborhood was bombed. Today, Doe lives in Illinois where she works as a behavioral technician for individuals with disabilities and cares for her elderly mother, a U. S. citizen. Without TPS, she will have to leave her mother and return to a still ravaged, violent, and dangerous country. Doe fears that as a single woman living alone, she will be robbed or even killed there. And she is afraid that her now 17-year-old daughter, who has lived in this country almost all her life, will have no future in Syria because she speaks little Arabic.

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Miot, Doe, and the other plaintiffs before us deserve better than today's decision. True enough that TPS is a temporary program, and that it did not promise the plaintiffs never-ending humanitarian protection. But the law prevents the program from ending as it likely did here—without the required consultations about country conditions and, as to Haiti, with impermissible race-based considerations tainting the decision. At this juncture, both sets of plaintiffs ask for only one thing: that they may stay in this country while they

continue to litigate their claims. For all the reasons given, they are entitled to that relief, and should not instead be consigned to devastating, and indeed life-threatening, injury.

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